IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No220

CP(CAA)/58(AHM)2022
in
CA(CAA)/32(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Bhagwat Power Salaya Ltd **.....Applicant**
Essar Steel Metal Trading Ltd

.....Respondent

Order delivered on ..24/04/2023

Coram:

Deep Chandra Joshi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Ms. Dharmishta Raval, Adv.
For the Income Tax Department	: Ms. Pankti Shah, Adv. for Ms. Maithili Mehta, Adv.
For the RD	: Mr. Shiv Pal Singh, Assistant Director (NWR)

ORDER

The report of Income Tax Department in the case of M/s. Essar Steel Metal Trading Ltd (Transferee Company No. 2) has been received from ACIT Circle 6 (1) (1) of Mumbai intimating that the demand of Rs. 30.32 Crore is pending in the case of this company.

No report from the Income Tax Department is received regarding M/s. Bhagwat Power Salaya Ltd.

None appears for the Official Liquidator. The reply of OL is on record. Learned Counsel for the petitioner companies states that there are no objections raised by the OL.

The Report of Regional Director (RD) has come on record. Learned Counsel for the petitioner companies informs that reply has been submitted to the said report.

Mr. Shiv Pal Singh Assistant Director appears for the office of RD and states that after going through their reply, the RD's office has no objection if the scheme is approved.

Learned Counsel for the Income Tax Department confirms that she has received the PAN number and details of the assessing officer of the applicant company no. 1. One last chance is given to Income Tax Department to file report.

List for hearing on 15.05.2023.

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AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

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DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

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